Administrative Change to OO-ALCI64-101, *Contractor Performance Assessment Report (CPAR)*

OPR: OO-ALC/OBC

To bring the instruction into compliance with DAFMAN90-161, *Publishing Processes and Procedures*, paragraph 4.5.10.

The publication signature block is hereby changed to:

"RICHARD W. GIBBS, Brigadier General, USAF; Commander, Ogden Air Logistics Complex."

23 JANUARY 2023

BY ORDER OF THE COMMANDER
OGDEN AIR LOGISTICS COMPLEX

OGDEN AIR LOGISTICS COMPLEX
INSTRUCTION 64-101

27 SEPTEMBER 2022
Certified Current, 20 June 2024
Contracting

CONTRACTOR PERFORMANCE ASSESSMENT REPORT (CPAR)

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

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RELEASABILITY: There are no releasability restrictions on this publication

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OPR: OO-ALC/OBC

Certified by: OO-ALC/OB
(Mr. Donald Jessen)

Supersedes: OO-ALCI64-101, 13 June 2019

Pages: 7

This Ogden Air Logistics Complex (OO-ALC) instruction defines policies, procedures, and responsibilities applicable to the development, coordination, and approval of Contractor Performance Assessment Report (CPAR) for the OO-ALC and further fulfills the requirements of Air Force Instruction (AFI) 64-102, *Installation Contracting*, and Air Force Sustainment Center Manual (AFSCMAN) 21-102, *Depot Maintenance Management*. This instruction applies to all military and civilian personnel in the OO-ALC; including 309th Aerospace Maintenance and Regeneration Group. Ensure all records generated as a result of processes prescribed in this publication adhere to AFI 33-322, *Records Management and Information Governance Program*, and are disposed of In Accordance With (IAW) the Air Force Records Disposition Schedule which is located in the Air Force Information Management System. Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using the Department of the Air Force (DAF) Form 847, *Recommendation for Change of Publication*; route DAF Forms 847 from the field through the appropriate functional chain of command.

SUMMARY OF CHANGES

Updated CPAR roles and responsibilities, added guidance for non-concurrence among parties, and additional guidance is added to clarify CPAR ratings. Verified and updated references.

1. General Information. The requirement for preparing CPARs is identified in the Federal Acquisition Regulation (FAR) Part 42.15, *Contractor Performance Information,* located at **https://acquisition.gov/**. The Contractor Performance Assessment Reporting System (CPARS) is a paperless contracting initiative developed by the Navy. The use of this system is directed by the Department of Defense (DoD). The website for CPARS is **https://cpars.gov/**. The primary purpose of CPARS is to ensure that accurate data on contractor performance is current, and available for use in source-selections through the Performance Informational Retrieval System. Performance assessments will be used as a resource in awarding best value contracts and orders to contractors that consistently provide quality, on-time products and services, within cost constraints that conform to contractual requirements. CPARS can be used to effectively communicate contractor strengths and weaknesses to source selection officials. The CPAR assesses a contractor's performance during a specified period of time beginning from contract award. A CPAR shall be accomplished on all contracting actions that meet applicable dollar thresholds.

2. Responsibilities.

2.1. The contracting office will provide notification of all newly awarded contracts to the Contracting Officer Representative (COR) contract office, Acquisition Management Support Office (AMSO), 309th Maintenance Support Group AMSO, or 309th Software Engineering Group Acquisition office focal point at the time of contract distribution, in order to identify and track contracts requiring CPARs.

2.2. The OO-ALC/OBC CPAR Focal Point will:

2.2.1. Act as the primary focal point for CPARs within the OO-ALC. The CPAR focal point will grant access for CPAR system to appropriate personnel. CPARS.gov will generate an automatic email that provides user ID and password once user's credentials are verified.

2.2.2. Monitor OO-ALC contracts to ensure CPARs are accomplished on all contracts requiring CPARs. Track and monitor all CPAR suspense/milestones, and will notify the applicable group commander of any reports more than 30 days overdue. CPAR requirements will be tracked in the program management office database.

2.2.3. Ensure the Assessing Official Representative (AOR) receives a 30-day notice, prior to the end of the rating period, to begin drafting the CPAR in CPARS, and inform the AOR of the due date.

2.2.4. Meet with the AOR and provide guidance, training, and assistance as needed with preparation of a CPAR. The CPAR focal point and or the OO-ALC Quality Assurance Program Coordinator (OO-ALC/QAPC) will ensure the CPAR is written and processed in compliance with the DoD CPARS Policy Guide located at **https://www.cpars.gov/pdfs/CPARS-Guidance.pdf** and make certain narratives meet rating criteria.

2.2.5. CPAR Focal Point, OO-ALC/QAPC or COR Lead ensure CPARs are processed properly and completely through the entire system.

2.2.6. Review all documentation pertaining to ratings; other than Satisfactory (SAT), to ensure contractor non-performance is documented completely, and feedback is provided to the contractor.

2.2.7. Facilitate CPAR protests and ensure timelines are met IAW CPAR.gov guidance.

2.3. The AOR will:

2.3.1. Prepare CPARs with correct and valid information, and submit into CPARS within timelines provided in section 3 of this instruction. A working document draft can be created in the CPARS, and finalized just prior to submission.

2.3.2. Work closely with the CPAR focal point, to ensure CPARs are properly processed and completed, as required/requested.

2.3.3. Obtain necessary coordination/approvals, and also coordinate with the CPAR focal point prior to submitting to the Assessing Official (AO) for approval/validation in CPARS.

2.3.4. For OO-ALC-level contracts, the applicable group AOR will be responsible to ensure CPARs are input for their delivery orders.

2.4. The AO will:

2.4.1. Review all CPARs prior to validating and forwarding to the Contractor Representative (CR), or the Reviewing Official (RO).

2.4.2. Complete all CPARs when returned from the CR, or the RO.

2.4.3. Provide direction to the AOR, and the CPAR focal point in the event of significant disagreements between the AOR and the CR. **NOTE:** If requested by the CR, within 7 days of receipt of the CPAR, the AO will facilitate a meeting to discuss CPAR ratings IAW CPAR.gov guidance.

2.4.4. If the CPAR is contested by the CR it will be forwarded to the RO for final rating.

2.4.5. Review comments from the CR once the evaluation has been returned by the contractor or if the contractor has not responded, after 60 calendar days have lapsed.

2.5. The RO will:

2.5.1. Review all disputed CPARs. The RO will review and determine if the CPAR should be changed, or remain as stated, hold a meeting with AO, AOR, Contracting Officer (CO), subject matter experts, Program Manager (PM), and include CR if deemed necessary to validate the dispute.

2.5.2. Close the disputed CPAR.

3. Procedures.

3.1. The AOR will set up a Multi-Function Team (MFT) with the key government personnel PM, CO, Acquisition Management Specialist, and those directly involved with the contract.

3.1.1. The MFT team shall have 20 days after period of performance end to draft a CPAR

3.1.2. The AOR shall have 5 days to finalize the CPAR and submit the CPAR to the AO.

3.2. The AO has 10 days to approve the CPAR. The AO will officially validate and send the CPAR via CPARS to the CR for review and comments. The CR has 60 days to respond.

3.2.1. For any ratings other than SAT (above SAT or below SAT) the AO will forward CPAR to OO-ALC/QAPC and CO for review before being sent to CR.

3.3. Once the CR has returned the CPAR and concurred with the ratings, the AO will validate and complete the CPAR. If the CR non-concurs, the AO will assess the comments from the CR and determine if the CPAR should be adjusted. If no adjustment needs to be made, the AO will forward to the RO for review.

3.3.1. If the RO, AO, and customer (group receiving the services) cannot come to an agreement on ratings the final decision will be made by one level above the CO.

3.3.1.1. Prior to re-submission to CR, the acting authority for final CPAR shall receive approval from 75 ABW/JA (Judge Advocate).

3.4. The AOR will provide the AO and RO the necessary details, history, and documentation needed to analyze and understand the reasons for non-concurrence. The RO will review and determine if the CPAR should be changed, or remain as stated, hold a meeting with AO and CR if necessary, and then validate to finalize in CPARS.

4. Training.

4.1. CPARS "Overview Training" is mandatory for all CPARS users and required as part of the CPARS.gov access process. Training can be found at the CPARS website **https://www.cpars.gov/**. One-on-one training can be provided upon request by OO-ALC/OBC.

4.1.1. Web-based training is the only type of online training for CPARS. This is an interactive online classroom that delivers live training via telephone and computer link. There are several courses available from an overview, to narrative writing. Course summaries and schedules can be viewed at the CPARS.gov website. Students can also sign up for training classes at the website.

4.2. The user manual for CPARS, located at **https://www.cpars.gov/documents/CPARS_User_Manual.pdf**, provides working-level procedures for entering, updating, revising, and viewing information in the CPARS Automated Information System. The user manual translates business process requirements into detailed step-by-step procedures, for individuals utilizing the automated CPARS process.

4.3. All CPAR training will be tracked in TSS/PACs, send copies of your training certificate to your training manager and CPAR focal point.

5. Policies.

5.1. The OO-ALC/OBC AMSO has a CPAR focal point that will assist with all CPARs. Each CPAR shall be prepared IAW the DoD CPARS Policy Guide. The type of acquisition and dollar thresholds that determine if a CPAR is required are located in Table 1 – Business Sector, Dollar Threshold and Reviewing Official of the CPARS-Guidance. The guidance can be found at the CPARS website **https://www.cpars.gov/documents/CPARS-Guidance.pdf** .

5.1.1. Systems (includes new development and major mods) >$5M (total contract cost);

5.1.2. Operations Support (spares and repairs on existing systems) >$5M (total contract cost);

5.1.3. Services >$1M (total contract cost);

5.1.4. Information Technology >$1M (total contract cost).

5.2. These dollar amounts are the thresholds when a CPAR is required. A CPAR can be accomplished on any contract, for any amount, at the discretion of the government.

5.3. The DoD CPARS Policy Guide mandates that a CPAR is accomplished within 120 days after the end of the rating period. In order to consistently meet that time frame, OO-ALC/OBC has established a gated process to comply with the DoD CPARS Policy Guide. Rating periods are normally on an annual basis beginning at contract award. The first CPAR is the initial report; all subsequent reports are called intermediate reports; upon contract completion a final report is written.

5.3.1. All CPAR information shall be transmitted/handled IAW source selection sensitive data guidelines. CPARs will be identified as "Source Selection Sensitive", may not be released without prior approval from the CPAR focal point, and must contain the legend "FOR OFFICIAL USE ONLY – SOURCE SELECTION INFORMATION".

5.4. The CPAR assesses a contractor's performance and provides a record, both positive and negative, on a given contract during a specific period of time. Each assessment must be based on objective facts, and be supported by program and contract management data such as: cost performance reports, customer complaints, quality reviews, technical interchange meetings, financial solvency assessments, production management reviews, contractor operations reviews, functional performance evaluations, award fee determinations, and earned contract incentives. CPARs are not cumulative; they assess only performance occurring after the prior assessment period.

5.5. It's important to document information during the year that will be pertinent to the CPAR. Information may include: status reports, monthly certificates of service, award fee evaluations, program reviews, and earned contract incentives.

5.6. The RO reviews CPARs that are returned from the CR with a non-concurrence, or that have significant differences, or disagreements. CPARs greater than $100M should be approved by the RO, prior to being officially sent to the contractor. If a disagreement is anticipated, the RO should be notified in writing by the AOR/AO, prior to officially submitting to the contractor through CPARS.

5.7. Final CPARs are maintained in the Past Performance Information Retrieval System for 3 years after the contract terminates.

MICHELLE D. HATHAWAY, NH-04, DAF
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Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

AFI 33-322, *Records Management and Information Governance Program,* 23 March 2020

AFI 64-102, *Installation Contracting*, 9 June 2020

AFSCMAN 21-102, *Depot Maintenance Management*, 5 April 2021

User Manual, *Contractor Performance Assessment Reporting System (CPARS)*, July 2018

Federal Acquisition Regulation (FAR) Part 42.15, *Contractor Performance Information,* 22 August 2018

Prescribed Forms

None

Adopted Forms

DAF Form 847, *Recommendation for Change of Publication*

Abbreviations and Acronyms

AFI—Air Force Instruction

AMSO—Acquisitions Management Support Office

AO—Assessing Official

AOR—Assessing Official Representative

AFSC—Air Force Sustainment Center

CO—Contracting Officer

CPAR—Contractor Performance Assessment Report

CPARS—Contractor Performance Assessment Reporting System

CR—Contractor Representative

DAF—Department of the Air Force

DoD—Department of Defense

FAR—Federal Acquisition Regulation

IAW—In Accordance With

OO-ALC—Ogden Air Logistics Complex

OO-ALC/QAPC—Ogden Air Logistics Complex Quality Assurance Program Coordinator

OPR—Office of Primary Responsibility

PM—Program Manager

RO—Reviewing Official

Terms

Assessing Official Representative (AOR)—The working-level program manager, or personnel who has submitted the requirement to contracting, and is responsible for managing the program on a daily basis. The AOR in coordination with quality assurance personnel, rates the contractor's performance in the CPAR, and provides narratives to support ratings.

Assessing Official (AO)—The OO-ALC group commanders, or otherwise delegated individuals responsible for execution of programs within the group.

Complex CPAR Focal Point—An individual within the OO-ALC Business Office, whose responsibility is to monitor CPAR requirements and the CPAR process. This person will provide guidance, training to OO-ALC personnel, and ensure CPARs are completed on all contracts as required, in a timely manner, and in compliance with DoD regulations.

Contractor Representative (CR)—The person designated by the contractor who officially reviews and provides comments on the CPAR.

CPAR—A document required by the FAR, that accurately provides contractor past performance history to source selection officials. The document should be an objective report of performance, during a specific period of time, measured against contract requirements.

CPARS—Mandatory system used to record and transmit CPARs.

FAR—The regulation for use by federal executive agencies for acquisition of supplies, and services with appropriated funds. The FAR is supplemented by DoD and military departments.

Reviewing Official (RO)—A senior-level manager, who is at least one level above the AO. The OO-ALC Commander/Director is the RO for all CPARs with AO at the group level. The Hill AFB Executive Director is the RO for all CPARs, when the OO-ALC Commander/Director, or equivalent is the AO.